

LAW AND POLITICS

The new legislation offers witness protection

The UPA Government plans to bring out a "more stringent than POTA" anti-terror law before the general elections. "It will not be TADA or POTA. It will not have the word 'terror' in its title at all," says a senior official involved in finalising the new legislation. It is likely to be brought in as an ordinance before the elections to counter the "soft-on-terror" charge of the Opposition. MP Rahul Gandhi's remark and Congress President Sonia Gandhi's reiteration of the need for a new law is part of the political strategy.

While retaining the teeth of POTA, the major change will be to redefine a "terrorist act" and a comprehensive witness protection programme. "The definition of a terrorist act was somewhat vague in TADA and POTA. The assassins of Rajiv Gandhi were convicted only under Section 302 (murder) of the Indian Penal Code and acquitted of charges under TADA. If killing him did not constitute a terror act, then it was time for a rethink," said an official.

Though the ambit of "terrorist act" will be widened, the definition will be short, inclusive and illustrative. "It will include, for example, all anti-national

ACTING TOUGH:
Sonia Gandhi is
advocating the
new terror law



activities or activities aimed at evoking terror," explained a Law Ministry official. Also, for the first time, there will be a legal framework for a witness protection programme which would entail concealment of identity, giving the witness a new identity and relocating him with family to a new place and providing lifelong protection.

Also, if an accused is caught with any explosive, not just weapons, the presumption would be that the person intended to use it for an act of terror. Other provisions—the person remaining in jail for six months to a year without a chargesheet, and a confession made before the police being admissible as evidence—will remain the same. However, the Government plans to introduce measures to prevent their misuse. Two committees would monitor implementation of the law right from the time of arrest of an accused.

Moreover, the confession of the accused would be admissible, if made in the presence of a magistrate or with the aid of audio-visual facility by a superintendent of police or above. In fact, it would ensure that even the FIR in the case is written in the presence of a magistrate.

by Bhavna Vij-Aurora

grow unchecked. If we do not do anything in India, we will have an unstable social environment, which will affect business and investment. You just have to look at countries like Pakistan and Afghanistan to realise what terrorism can eventually do to the society and the economy," says MP and FICCI President Rajeev Chandrashekhar. The blasts are already attacking investor confidence by exposing the Indian state as being weak on terror. Days after the attacks on Jaipur and Delhi—two points in the tourism triangle which includes Agra—a slew of westerners cancelled pre-booked tour packages.

Experts argue that it is impossible to stop the phenomena of creeping radicalisation that feeds terror. "Terror groups are never short of volunteers. Wean away three potential recruits and they will find another 30. The only way is to destroy the networks and to the extent possible, destroy the source," says counter-terrorism expert Ajai Sahni. The answer, experts believe, is to fill up vacant posts in the police force and strengthen the Intelligence Bureau. Yet, would rushing more troops into the breach tackle the threat? Unlikely. Radicalisation makes little noise, takes place over time and does not lend itself to the traditional criminal investigation approach which looks at tackling criminal organisations.

As the NYPD report emphasises, efforts must be made to enhance the intelligence capabilities of local police who through community or soft policing, routine criminal investigations or dedicated intelligence operations may be best positioned to uncover future terrorist plots. Already, security forces the world over are shifting focus from taking down the bad guys to preventing young men from being radicalised. Indian police agencies could well use the British police mantra to counter domestic terrorism—communities defeat terrorism. Two years back, community elders helped foil the 'liquid explosives plot' by pointing out the suspicious activities of a group of local Muslim youth to the London Police. Why this did not happen at Batla House is something the local police have to start asking themselves.

In India, the only inroads the police has been able to make into the Muslim community is through the mohalla committee model. It has worked admirably in preventing riots in communal tinder-boxes like Mumbai's Dharavi and Bhivandi but would take nothing short of a dramatic makeover for the police to reorient it to spot the breeding cesspools of radicalism. The alternative is terrifying: wait for the next attack.

with Uday Mahurkar in Ahmedabad